

SENATE BILL No. 75

DIGEST OF INTRODUCED BILL

Citations Affected: IC 22-12-11.

Synopsis: Drive-through safety lanes. Requires certain drive-through facilities constructed or renovated after December 31, 2026, to have a separate bypass lane adjacent to the specified drive-through lanes. Makes certain exceptions. Requires the fire prevention and building safety commission to adopt administrative rules.

Effective: July 1, 2026.

Ford J.D.

December 8, 2025, read first time and referred to Committee on Homeland Security and Transportation.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 75

A BILL FOR AN ACT to amend the Indiana Code concerning labor and safety.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 22-12-11 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]:

4 **Chapter 11. Drive-through Facility Safety**

5 **Sec. 1. As used in this chapter, a "drive-through facility" means**
6 **a drive-through financial institution, drive-through pharmacy, or**
7 **drive-through restaurant.**

8 **Sec. 2. As used in this chapter, "drive-through financial**
9 **institution" means a financial institution that has one (1) or more**
10 **driving lanes on the exterior of its permanent building site that**
11 **allow a customer to conduct financial transactions from inside the**
12 **customer's motor vehicle rather than conducting those**
13 **transactions inside the building.**

14 **Sec. 3. As used in this chapter, "drive-through pharmacy"**
15 **means a pharmacy that has one (1) or more driving lanes on the**
16 **exterior of its permanent building site that allow a customer to**
17 **drop off or pick up prescriptions while remaining inside the**



customer's motor vehicle rather than conducting those transactions inside the building.

Sec. 4. As used in this chapter, "drive-through restaurant" means a food service operation or retail food establishment that has one (1) or more driving lanes on the exterior of its permanent building site that allow a customer to order, pay for, and pick up food or beverages while remaining inside the customer's motor vehicle rather than conducting those transactions inside the building.

Sec. 5. As used in this chapter, "financial institution" has the meaning set forth in IC 28-1-1-3(1).

Sec. 6. As used in this chapter, "motor vehicle" has the meaning set forth in IC 9-13-2-105(a).

Sec. 7. (a) This section applies after December 31, 2026.

(b) Except as provided in section 8 of this chapter:

- (1) all new construction of a drive-through facility; or
- (2) any business with a drive-through facility that undergoes major renovations, expansion, or redevelopment to either its permanent building or to its parking areas;

shall meet the minimum requirements specified in subsections (c) and (d).

(c) The owner of a drive-through facility shall ensure that any drive-through lane serving the facility's customers has an adjacent bypass lane that allows for the following:

- (1) The operator of a motor vehicle in the drive-through lane to drive the motor vehicle out of the drive-through lane and into the bypass lane in order to exit the property.
- (2) The operator of a public safety vehicle to drive alongside or close to any motor vehicle in the drive-through lane in order to respond to an emergency related to an operator or passenger of the motor vehicle.

(d) A bypass lane described in subsection (c) shall meet the following minimum standards:

- (1) Be not less than ten (10) feet wide without obstructions.
- (2) Contain adequate vertical and horizontal clearance for standard passenger vehicles and public safety vehicles.
- (3) Include clear, visible signage to alert vehicle operators to the presence and direction of the bypass lane.
- (4) Be designed so as to not obstruct pedestrian pathways, fire lanes, public safety vehicle access to the permanent building, or accessible parking spaces or routes for persons with disabilities.



1 **Sec. 8. (a) The requirements set forth in section 7 of this chapter**
2 **do not apply to the following:**

3 **(1) A drive-through facility built prior to January 1, 2027, to**
4 **which the following apply:**

5 **(A) There is insufficient space adjacent to the**
6 **drive-through lane to create a bypass lane on the property**
7 **on which the drive-through facility is located.**

8 **(B) Compliance with section 7 of this chapter would force**
9 **the owner of the drive-through facility to close or relocate**
10 **the business at which the drive-through facility is located.**

11 **(2) A drive-through facility where the drive-through lane**
12 **passes through the physical permanent structure.**

13 **(b) The commission shall review an order denying a person's**
14 **exemption under subsection (a) in accordance with IC 22-13-2-7 if**
15 **the person aggrieved by the applicable order petitions for review**
16 **under IC 4-21.5-3-7 within thirty (30) days after the issuance of the**
17 **order.**

18 **Sec. 9. Nothing in this chapter shall be construed as an**
19 **exemption from the requirements of the Americans with**
20 **Disabilities Act (42 U.S.C. 12101 et seq.).**

21 **Sec. 10. The commission shall adopt rules under IC 4-22-2**
22 **necessary to implement this chapter.**

